Divyansh Goel vs Central Bureau Of Investigation on 24 March, 2025

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
+ BAIL APPLN. 765/2025
   DIVYANSH GOEL ....
   Through: Mr. Mohit Mathur, Senior
   with Mr. Aman Gaur, Advo
   versus
   CENTRAL BUREAU OF INVESTIGATION ....
   Through: Mr. Anupam S Sharma, SPP
   Inspector Mr. Ashok Kuma
+ BAIL APPLN. 777/2025
   ABHINAV KALRA .....
   Through: Mr. N. Hariharan, Senior
   with Mr. Pawan Yadav, Ad
   versus
   CENTRAL BUREAU OF INVESTIGATION .....Respondent
   Through: Mr. Anupam S Sharma, SPP
   Inspector Mr. Ashok Kuma
   CORAM:
   HON'BLE MR. JUSTICE GIRISH KATHPALIA
   OR

% 24.03.2025 [Physical Hearing/Hybrid Hearing (as per request)] CRL.M.A. 5549/2025 (for interim protection) in BAIL APPLN.

CRL.M.A. 5588/2025 (for interim protection) in BAIL APPLN.

CRL.M.A. 7597/2025 (seeking permission to place on record synopsis in seven pages and relevant docs. o/b petitioner) in BAIL APPLN.

1. The petitioners have sought anticipatory bail in the case registered by CBI for offences under Section 420/467/468/471 read with Section 120B IPC.

2. It is contended on behalf of the petitioners that they have not been named in the FIR and were granted protection by the Court of Sessions This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 24/03/2025 at 22:44:14 where their anticipatory bail applications were earlier filed and heard and they joined the investigation till 09.01.2025, after which they were never called but the CBI conveyed that they were not cooperating in the investigation, so their applications were dismissed by the learned Additional Sessions Judge.

3. Both learned senior counsel argued that the requirement to join investigation cannot be overstretched to mean that the accused would answer in the manner the investigator expects. It is argued that accused has a right to remain silent.

4. Both learned senior counsel, taking me through the allegations in the case set up by CBI, contended that there is no evidence collected so far in order to connect either of the petitioners with the call centres which allegedly were engaged in transnational cyber fraud, targeting American citizens. It is further contended that no criminal antecedent of either of the petitioners is on record. It is also contended that CBI is not clear in what manner the petitioners or either of them is connected with either of the companies named in the allegations.

5. On the other hand, learned prosecutor appearing for CBI submits that there are statements of the arrested accused persons, who have clearly named the present petitioners as the persons running the alleged call centres. Further, it is submitted on behalf of CBI that there is a transaction of Rs.20,000/- between the petitioner Sh. Divyansh Goel and one of the arrested accused.

6. In view of the above rival submissions, it is considered necessary, so both sides are directed to file a bullet point synopsis not running into more than two pages. CBI is specifically directed to disclose in their synopsis the This is a digitally signed order.

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7. Keeping in mind the admitted position that in the course of hearing of anticipatory bail applications before the Court of Sessions, both petitioners remained protected from arrest, it is directed that till next date, the petitioners shall not be arrested subject to their joining investigation as and when directed by the investigating officer by way of written notice.

8. Relist on 09.05.2025.

GIRISH KATHPALIA, J MARCH 24, 2025/ry Click here to check corrigendum, if any This is a digitally signed order.

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